Syllabus

GEO GROUP, INC. *v.* MENOCAL ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE TENTH CIRCUIT

No. 24–758. Argued November 10, 2025—Decided February 25, 2026

Petitioner GEO Group operates a private detention facility in Aurora, Colorado, under a contract with U. S. Immigration and Customs Enforcement (ICE). Respondent Alejandro Menocal, a former detainee at the Aurora facility, initiated this class action, alleging GEO's work policies for detainees violate a federal bar on forced labor and Colorado's prohibition on unjust enrichment. GEO responded that the suit must be dismissed under *Yearsley* v. *W. A. Ross Constr. Co.*, 309 U. S. 18, which held that a federal contractor cannot be held liable for conduct that the Government has lawfully "authorized and directed" the contractor to perform. *Id.*, at 20–21. GEO argued that ICE had authorized and directed it to carry out the challenged labor policies. But the District Court did not read GEO's contract with the Government to instruct GEO to adopt those policies. The District Court thus concluded that the *Yearsley* doctrine did not relieve GEO of legal responsibility and a trial would be necessary. GEO immediately filed an appeal, which the Court of Appeals for the Tenth Circuit dismissed for lack of jurisdiction, holding that an order denying *Yearsley* protection does not qualify for interlocutory review under *Cohen* v. *Beneficial Industrial Loan Corp.*, 337 U. S. 541.

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Held: Because *Yearsley* provides federal contractors a potential merits defense rather than an immunity from suit, a pretrial order denying *Yearsley* protection is not immediately appealable. Pp. 443–452.

(a) The courts of appeals have jurisdiction over appeals from "final decisions of the district courts." 28 U. S. C. § 1291. A decision generally is "final" only when it "resolves the entire case"—when it "ends the litigation" on the merits or otherwise. *Ritzen Group, Inc.* v. *Jackson Masonry, LLC*, 589 U. S. 35, 37–38. That final-judgment rule, by preventing piecemeal appeals, "promotes the efficient administration of justice" and "preserves the proper balance between trial and appellate courts." *Microsoft Corp.* v. *Baker*, 582 U. S. 23, 36–37.

Under the collateral-order doctrine, however, a "small class" of decisions are treated as "final"—and thus immediately appealable—even though they do not end a case. *Cohen*, 337 U. S., at 546. To get immediate review, a prejudgment order must satisfy the three conditions this Court has "distilled" from *Cohen*. *Will* v. *Hallock*, 546 U. S. 345, 349.

The order must "(1) conclusively determine the disputed question, (2) resolve an important issue completely separate from the merits of the action, and (3) be effectively unreviewable on appeal from a final judgment." *Van Cauwenberghe* v. *Biard*, 486 U. S. 517, 522.

Whether the denial of a pretrial request to dismiss a case like the one here can satisfy *Cohen*'s third condition will generally turn on whether the defendant has asserted a defense to liability or instead an immunity from suit. A party asserting a merits defense advances some reason why his conduct was not unlawful and he should not be found liable. But a party asserting an immunity need not challenge the merits of the charge against him: his claim of immunity does not turn on his conduct's legality. That difference entails another. Because it ensures a defendant need not "answer for his conduct" in court at all, an immunity is in its "essence" an "entitlement not to stand trial." *Mitchell* v. *Forsyth*, 472 U. S. 511, 525–526. A liability defense, by contrast, does not allow the defendant to escape legal proceedings, because it is through them that the asserted defense is addressed and liability finally determined. And that divergence matters for *Cohen*'s third condition, which requires that the order involve a right that "would be irretrievably lost absent an immediate appeal." *Van Cauwenberghe*, 486 U. S., at 524. The right not to stand trial is irretrievably lost once trial occurs, but the right to a finding of non-liability can be effectively vindicated after trial, through reversal of an adverse final judgment. So, if a defendant asserts a liability defense, *Cohen* is likely to block an immediate appeal; if he asserts an immunity, *Cohen* will likely allow it. Pp. 443–447.

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(b) Does *Yearsley* offer federal contractors a merits defense or instead an immunity? Menocal says a defense, because *Yearsley* gives contractors only a way to show that their conduct complied with the law. GEO says an immunity—more specifically, "derivative sovereign immunity"—where the Government's own immunity extends to contractors who meet specified conditions. Brief for GEO 15.

Yearsley provides a potential defense to liability, not an immunity from suit. In *Yearsley*, the Court held that a contractor that had flooded the Yearsleys' property while performing work "authorized and directed by the Government" was not liable to the landowner. 309 U. S., at 20. The Court explained that a contractor acting as an agent of the Government could be held liable for injurious conduct in only two circumstances: when "he exceeded his authority" or when that authority "was not validly conferred." *Id.*, at 21. The Court found neither circumstance obtained in *Yearsley*, because the contractor received a lawful authorization and stayed within the bounds of the authority given. That reasoning describes a defense, not an immunity: *Yearsley*'s protection runs out when the contractor may have violated the law—when the

contractor either acted under an illegal authorization or exceeded the scope of a legal one. *Yearsley* thus ensures that it will never shield unlawful conduct, in the way that all immunities do.

GEO's contrary view—that it enjoys "derivative sovereign immunity"—would put *Yearsley* in conflict with the general rule that sovereign immunity is not transferrable to government agents. The Court has repeatedly held that the Government's immunity from suit "does not extend to those that act[ ] in its name," *Sloan Shipyards Corp.* v. *United States Shipping Bd. Emergency Fleet Corporation*, 258 U. S. 549, 568, or do its work, *Keifer & Keifer* v. *Reconstruction Finance Corporation*, 306 U. S. 381, 388, including by "reason of a contract" with the Government, *Brady* v. *Roosevelt S. S. Co.*, 317 U. S. 575, 583; see also *Hopkins* v. *Clemson*, 221 U. S. 636, 642–643. The whole thrust of those decisions is to deny that government agents can assert—whether always or sometimes—a "derived" form of sovereign immunity. Instead, sovereign immunity belongs alone to the Government. Pp. 447–451.

(c) Once *Yearsley* is properly understood as a merits defense, the question before the Court almost answers itself. Like the denial of other defenses, a district court's denial of *Yearsley* protection is not immediately appealable under § 1291. Such a ruling is not, as *Cohen*'s third condition demands, "effectively unreviewable on appeal from a final judgment." *Van Cauwenberghe*, 486 U. S., at 522. The right that a merits defense affords is to a finding of non-liability. And that right—unlike the right not to stand trial—is fully vindicable on appeal from a final judgment. Accordingly, the finality rule of § 1291 precludes interlocutory review of a *Yearsley* denial. Pp. 451–452.

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Affirmed and remanded.

KAGAN, J., delivered the opinion of the Court, in which ROBERTS, C. J., and SOTOMAYOR, GORSUCH, KAVANAUGH, BARRETT, and JACKSON, JJ., joined, and in which THOMAS, J., joined as to Parts I and III. THOMAS, J., filed an opinion concurring in part and concurring in the judgment, *post*, p. 452. ALITO, J., filed an opinion concurring in the judgment, *post*, p. 453.

Dominic E. Draye argued the cause for petitioner. With him on the briefs were *William E. Eye*, *Scott A. Schipma*, and *Joseph Negron, Jr.*

Jennifer D. Bennett argued the cause for respondents. With her on the brief were *Jessica Garland*, *Deepak Gupta*, *Gregory A. Beck*, and *Thomas Scott-Railton*.

Sopan Joshi argued the cause for the United States as *amicus curiae* urging affirmance. With him on the brief

were *Solicitor General Sauer*, *Assistant Attorney General Shumate*, *Deputy Solicitor General Harris*, *Michael S. Raab*, and *Ashley C. Honold.**

JUSTICE KAGAN delivered the opinion of the Court.

In *Yearsley* v. *W. A. Ross Constr. Co.*, 309 U. S. 18, 20 (1940), this Court held that a federal contractor cannot be held liable for conduct that the Government has lawfully "authorized and directed" the contractor to perform. Rather, liability may attach only if the authorization was unlawful or if the contractor acted outside its scope. See *id.*, at 20–21.

The question here is whether a contractor may take an immediate appeal of a district court's pretrial order denying *Yearsley* protection. The answer is no. Because *Yearsley* provides a defense to liability, not an immunity from suit, an order denying its protection can be effectively reviewed after a final judgment. So appellate review of such an order, as of most pretrial rulings, must await completion of the district court's proceedings.

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*Briefs of *amici curiae* urging reversal were filed for the Chamber of Commerce of the United States of America by *Michael R. Huston*, *Shae McPhee*, *Jonathan D. Urick*, and *Nicholas S. Crown*; for the Coalition for Common Sense in Government Procurement by *Nicole Saharsky* and *Charles A. Rothfeld*; for MVM, Inc., by *Paul J. Fraidenburgh*, *Alexander P. Carroll*, and *Anne M. Voigts*; for the Nevada Hospital Association by *Hugh C. Griffin*; for the Professional Services Council—The Voice of the Government Services Industry by *Daniel L. Russell*, *Jr.*, and *Raymond B. Biagini*; and for Alexander Volokh, *pro se*.

Briefs of *amici curiae* urging affirmance were filed for the American Association for Justice by *Robert S. Peck*, *Bruce Plaxen*, and *Jeffrey R. White*; for Citizens for Responsibility and Ethics in Washington by *Jonathan Maier* and *Donald K. Sherman*; for Public Citizen by *Nandan M. Joshi*, *Scott L. Nelson*, and *Allison M. Zieve*; for the Roderick and Solange MacArthur Justice Center et al. by *Amit Jain*, *Ellen Noble*, *Anya Bidwell*, and *Patrick Jaicomo*; and for Erwin Chemerinsky by *Steven A. Hirsch* and *Anne Bloom*.

Georgina Yeomans, *Teague Paterson*, and *Matthew Stark Blumin* filed a brief of *amicus curiae* for the American Federation of State, County and Municipal Employees.